

STATE OF NEW YORK

8938--A

2025-2026 Regular Sessions

IN ASSEMBLY

July 16, 2025

Introduced by M. of A. EACHUS -- read once and referred to the Committee on Social Services -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring that two electronic benefit transfer credit or debit cards be issued to certain households receiving special supplemental nutrition program for women, infants and children (WIC) benefits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The section heading of section 2507 of the public health
2 law, as amended by chapter 12 of the laws of 2017, is amended and a new
3 subdivision 3 is added to read as follows:

4 Special supplemental nutrition program for women, infants and chil-
5 dren[~~;~~ ~~specialty formula~~].

6 3. Any electronic benefit transfer services for WIC benefits shall
7 ensure that two electronic benefit transfer credit or debit cards are
8 issued for use by any recipient household having more than one parent or
9 guardian residing in the household on a full-time basis, provided that
10 at least two parents or guardians residing in the household, or a combi-
11 nation thereof, qualify for benefits pursuant to this chapter. No card
12 shall be issued to any person under the age of eighteen unless such
13 person is a parent or guardian of a minor child. The issuance of a
14 second card shall be consistent with federal requirements and is subject
15 to the request and approval by the head of household and shall not enti-
16 tle the recipients to any additional benefits. Benefit recipients shall
17 not be required to accept or utilize both cards. The department shall
18 notify existing and future benefit recipients of the availability of
19 multiple cards.

20 § 2. This act shall take effect on the one hundred eightieth day after
21 it shall have become a law. Effective immediately, the addition, amend-
22 ment and/or repeal of any rule or regulation necessary for the implemen-
23 tation of this act on its effective date are authorized to be made and
24 completed on or before such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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